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IN THE UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **CAPTAIN G. SERRATO, IN HIS INDIVIDUAL AND OFFICIAL CAPACITIES AS COMMANDER, DUBLIN AREA, CALIFORNIA HIGHWAY PATROL,** Defendant.	4:26-cv-05953-ASK **JOINT CASE MANAGEMENT CONFERENCE STATEMENT** Date: September 15, 2026 Time: 1:30 p.m. Dept: Via Zoom Judge: The Honorable Ajay S. Krishnan Trial Date: None Set Action Filed: 6/17/2026

Pursuant to Civil Local Rule 16-9 and the Standing Order for all judges for the Northern District of California, the parties (Plaintiff Brendan Ngehsi Newanforbi, appearing in pro se. and *Captain* G. Serrato, in his individual and official capacities) hereby submit their Joint Case Management Conference Statement for the Initial Case Management Conference, scheduled on September 15, 2026, at 1:30 p.m., before the Honorable Ajay S. Krishnan, Magistrate-Judge of the United States District Court for the Northern District of California:

I. JURISDICTION & SERVICE

Plaintiff claims federal question jurisdiction based upon alleged violations of 42 U.S.C. section 1983. Defendant has been served with process and has appeared by filing a FRCP Rule 12 (B)(6) motion to dismiss, based on the contention that the operative First Amended Complaint failed to state a claim upon which relief can be granted.

II. FACTS

A. Plaintiff's Statement

On November 1, 2024, California Highway Patrol officers contacted Plaintiff on the Interstate 580 shoulder in Livermore and arrested him for driving under the influence (CHP Case No. RJ68845). On November 5, 2024, CHP issued a detention certificate recharacterizing the event as "a detention only, not an arrest," for insufficient grounds to make a criminal complaint. The Alameda County District Attorney filed no accusatory pleading. In March 2026 Plaintiff filed a POST complaint concerning the officers' conduct, which Defendant acknowledged in writing on March 26, 2026, and assigned to an investigator. On April 9, 2026, Plaintiff submitted a request for U Nonimmigrant Status Certification (Form I-918, Supplement B) under Penal Code section 679.10. On April 20, 2026, Defendant denied the request by letter.

B. Defendant's Statement

Defendant denies all material allegations, including that the denial of Plaintiff's request for U-visa certification was based upon retaliatory animus or any other improper motive.

III. Legal Issues

A. Plaintiff's Statement

Principal factual issues in dispute: (a) what record Defendant actually reviewed before denying the request; (b) whether the stated basis for the denial was the actual basis; (c) whether Plaintiff's protected activity was a substantial or motivating factor in the denial; and (d) the nature and extent of Plaintiff's resulting injury

B. Defendant's Statement

In his Rule 12 (B)(6) motion, Defendant raised arguments that 1) Plaintiff did not have a statutory or constitutional right to U-visa certification as a matter of law, 2) Plaintiff has failed to plead facts sufficient for a First Amendment retaliation claim as the facts alleged within the First

Amended Complaint show that Plaintiff did not meet the requirements of U-visa certification, 3) Plaintiff is not entitled to declaratory or injunctive relief based upon the facts pled in the First Amended Complaint, 4) Plaintiff is not entitled to attorney's fees as a pro se litigant and 5) Defendant is entitled to qualified immunity in his individual capacity as to all of Plaintiff's claims.

IV. Motions

A. Plaintiff's Statement

Prior motions. The Court granted Plaintiff's application to proceed in forma pauperis and screened the Complaint under 28 U.S.C. section 1915 on June 29, 2026. On August 24, 2026, the Court granted Plaintiff's Administrative Motion to Consider Whether Cases Should Be Related (Civil L.R. 3-12), relating this action to *Nforbi v. Meza-Gonzalez*, No. 3:26-cv-08271.

Pending. Defendant's Motion to Dismiss the First Amended Complaint and/or Motion to Strike under Rules 12(b)(6) and 12(f) (Dkt. 18), filed August 26, 2026. Plaintiff's opposition was filed August 27, 2026. By Clerk's Notice (Dkt. 21) the hearing was reset to September 30, 2026, at 1:30 p.m. for short notice under Civil L.R. 7-2(a). The motion will be heard after this conference.

Anticipated. Following discovery, Plaintiff may move for partial summary judgment.

B. Defendant's Statement

In addition to the pending Motion to Dismiss, Defendant anticipates filing a summary judgment motion if necessary.

V. Amendment of Pleadings

A. Plaintiff's Statement.

The First Amended Complaint (Doc. 10) is operative. Plaintiff does not presently anticipate further amendment, but the pending motion to dismiss may bear on that. Plaintiff proposes a deadline to amend pleadings of sixty days after the Court rules on Dkt. 18.

B. Defendant's Statement.

As stated in the pending Motion to Dismiss, Defendant opposes any further amendment of the operative First Amended Complaint.

VI. Evidence Preservation

A. Plaintiff's Statement

Plaintiff has reviewed the Guidelines Relating to the Discovery of Electronically Stored Information and the Checklist for ESI Meet and Confer. Plaintiff has preserved and continues to preserve all documents, correspondence, audio-video recordings, and electronically stored information relating to the November 1, 2024, incident, the certification request, and the denial.

B. Defendant's Statement

Defendant has reviewed the ESI Guidelines and has agreed to take the necessary and reasonable steps to preserve such evidence

The parties conferred under Fed. R. Civ. P. 26(f) on September 3, 2026, and agreed to take reasonable and proportionate steps to preserve such evidence

VII. Disclosures

A. Plaintiff's Statement

Initial disclosures under Fed. R. Civ. P. 26(a)(1) are due September 8, 2026, under the Doc. 4 scheduling order. Plaintiff's disclosures identify Plaintiff, Defendant, the officers involved in the November 1, 2024, stop, and CHP custodians of the certification and complaint files; and describe the audio-video recording of the stop, the arrest report, the detention certificate, the certification request and its enclosures, the April 20, 2026, denial, and the related correspondence. Plaintiff is serving his disclosures on the September 8, 2026, due date and asks that Defendant serve his within seven days so that the exchange is mutual.

B. Defendant's Statement

The parties have not made their initial disclosures to date as the parties have filed a stipulation to continue the initial case management conference on September 3, 2026. Defendant is prepared to make mutual initial disclosures in accordance with the Court's Standing Order and the requirements of FRCP Rule 26

VIII. Discovery

A. Plaintiff's Statement

No discovery has been taken. Plaintiff anticipates written discovery and a limited number of depositions, including Defendant and the CHP custodian of the certification file, directed to

what was reviewed, who participated in the decision, and what role Plaintiff's complaints played in it. Plaintiff does not presently propose any modification of the presumptive limits of the Federal Rules. Plaintiff is willing to enter a stipulated e-discovery order and, so that no production is delayed on that account, will stipulate to this District's model protective order covering California Highway Patrol policy and personnel material on Defendant's request. Plaintiff is aware of no discovery dispute at this time.

B. Defendant's Statement

The parties have not yet begun discovery. Defendant anticipates that a protective order may be needed over information regarding California Highway Patrol policies and/or information related to California Highway Patrol personnel which may be produced in discovery.

IX. Class Actions

This is not a class action.

X. Related Cases

A. Plaintiff's Statement

Nforbi v. Meza-Gonzalez, et al., No. 3:26-cv-08271 (N.D. Cal.), related to this action by order entered August 24, 2026, and reassigned to this Court.

Newanforbi v. California Highway Patrol, et al., Alameda County Superior Court No. 26CV191136 — a petition for writ of mandate under Code of Civil Procedure section 1085 challenging the same April 20, 2026, certification denial. A demurrer was overruled in part and sustained in part by order entered August 29, 2026; the first cause of action survives. A case management conference is set for October 28, 2026.

Nforbi v. Candelaria, et al., No. 3:26-cv-08272 (N.D. Cal.), pending before Magistrate Judge Cisneros — claims arising from the Department of Motor Vehicles administrative per se proceeding that followed the same November 1, 2024, stop. That action concerns a different agency, a different decision, and different defendants, and does not involve the April 20, 2026, certification denial at issue here. Plaintiff discloses it for completeness.

B. Defendant's Statement

Nforbi v. Meza-Gonzalez, et al., No. 3:26-cv-08271 (N.D. Cal.), related to this action by order entered August 24, 2026, and reassigned to this Court.

XI. Relief

Plaintiff seeks compensatory damages for the deprivation of meaningful access to the certification process and the resulting immigration uncertainty, loss of employment authorization, and emotional distress; punitive damages against Defendant in his individual capacity; declaratory relief under 28 U.S.C. sections 2201-2202; injunctive relief against Defendant in his official capacity requiring that Plaintiff's certification request be decided through constitutionally adequate process and free of retaliatory motive, as pleaded in the First Amended Complaint; and costs and attorney's fees under 42 U.S.C. section 1988(b), including fees for any counsel Plaintiff retains in this action.

Compensatory damages will be calculated from documented lost earnings and out-of-pocket costs traceable to the denial, together with general damages to be determined by the trier of fact. Plaintiff will supplement this statement of computation with his Rule 26(a)(1)(A)(iii) disclosure.

XII. Settlement and ADR

The parties have agreed to participate in a Settlement Conference with a Magistrate Judge following discovery in accordance with the requirements within ADR L.R. 3-5. Defendant believes that it is currently premature to hold ADR discussions, and ADR discussions should wait until at least some discovery is complete. Plaintiff is willing to discuss settlement at any time and believes a settlement conference will be most productive once the Court has ruled on Dkt. 18.

XIII. Other References

The parties do not believe this case is suitable for reference to binding arbitration, a special master, or the Judicial Panel on Multidistrict Litigation.

XIV. Narrowing of Issues

A. Plaintiff's Statement

Plaintiff identifies the following as the issues most consequential to this case:

(1) Whether Defendant's April 20, 2026, denial was arbitrary in the constitutional sense, measured against the record then in the agency's possession.

(2) Whether Plaintiff's protected petitioning activity was a substantial or motivating factor in that denial.

(3) Whether Defendant is entitled to qualified immunity.

Resolution of the first two may be expedited by early production of the certification and complaint files and by stipulation to the authenticity of the agency's own records. Plaintiff is willing to stipulate to facts not genuinely in dispute. Plaintiff does not agree that qualified immunity resolves this case and has addressed that question in his opposition (Dkt. 20).

B. Defendant's Statement

Defendant identifies the following as the issues most consequential to this case:

(1) Whether Defendant is entitled to qualified immunity for denying Plaintiff's request for U-visa certification

(2) Whether Plaintiff has a constitutional right or statutory right to U-visa certification based upon his own civil complaint against California Highway Patrol officers

(3) Whether retaliatory animus against Plaintiff for filing complaints against California Highway Patrol officers was a substantial motivating factor in Defendant's decision to deny Plaintiff's request for U-visa certification.

Defendant believes that the qualified immunity question is the most consequential to the case as qualified immunity would bar all of Plaintiff's claims against Defendant in his individual capacity, and Plaintiff has named Defendant in his official capacity only for the purposes of seeking injunctive and declaratory relief. (ECF Docket No. 10. ¶ 10.)

XV. Expedited Trial Procedure

A. Plaintiff's Statement

Plaintiff is willing to discuss whether this case is suitable for the Expedited Trial Procedure of General Order No. 64.

B. Defendant's Statement

Defendant does not believe that this case is suitable for the Expeditated Trial Procedure.

XVI. Scheduling

The parties agree to meet and confer regarding a discovery schedule after the Court rules on Defendant's pending Motion to Dismiss.

XVII. Trial

The parties request a trial by jury and estimate a trial length of 4-7 court days.

XVIII. Disclosure of Non-Party Interested Entities or Persons

A. Plaintiff's Statement

Plaintiff has executed the Certification of Interested Entities or Persons required by Civil Local Rule 3-15, dated September 4, 2026, and has submitted it to the Clerk for filing. Restating its contents: other than the named parties, Plaintiff knows of no person, firm, partnership, corporation, or other entity having either a financial interest in the subject matter in controversy or in a party to this proceeding, or any other kind of interest that could be substantially affected by the outcome. No person or entity is funding the prosecution of any claim.

B. Defendant's Statement

Defendant, in his official capacity, is a governmental entity which is exempt from Civil Local Rule 3-15.

XIX. Professional Conduct:

A. Plaintiff's Statement

Plaintiff is self-represented and has reviewed the Guidelines for Professional Conduct for the Northern District of California.

B. Defendant's Statement

Defense counsel has reviewed the Guidelines for Professional Conduct for the Northern District of California.

XX. Other Matters

A. Plaintiff's Statement

One matter may bear on the conference. Defendant's motion to dismiss (Dkt. 18) is set for hearing on September 30, 2026, fifteen days after this conference. The parties are available to address whether case scheduling should be set at this conference or revisited after the Court rules on that motion. Plaintiff asks the Court to set a date certain for Defendant's Rule 26(a)(1) disclosures. Although the parties have agreed under Section XVI to confer on a discovery schedule after the Court rules on Dkt. 18, Plaintiff is prepared to propose a full pretrial schedule, including a trial date, at the conference should the Court wish to set one.

B. Defendant's Statement

Defendant respectfully request that the Court sign the Order on the parties Joint Stipulation to Continue the Initial Case Management Conference, filed on September 3, 2026.

Dated: September 8, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
ELIZABETH S. ANGRES
Supervising Deputy Attorney General

/s/Haiyang Allen Li
HAIYANG A. LI
Deputy Attorney General
Attorneys for Defendant
Captain G. Serrato in his individual and official capacities

Dated: September 8, 2026

/s/ BRENDAN NGEHSI NEWANFORBI
BRENDAN NGEHSI NEWANFORBI
Plaintiff in Pro Per

ATTESTATION UNDER CIVIL LOCAL RULE 5-1(I)(3)

I, Haiyang Allen Li, attest that Plaintiff Newanforbi has authorized the filing of this document with his electronic signature.

Dated: September 8, 2026

/s/ Haiyang Allen Li

_____

Haiyang Allen Li

DECLARATION OF SERVICE BY E-MAIL

Case Name: Brendan N. Newanforbi v. Captain G. Serrato, et al.
Case Number: 4:26-cv-05953-ASK
Party Represented: California Highway Patrol

Declaration of Electronic Service

1. I am at least 18 years of age and not a party to this matter.

2. I am employed in the Office of the Attorney General of the State of California. My business address is 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004, County of San Francisco.

3. My electronic service address is Giomara.Guardado@doj.ca.gov.

4. On September 8, 2026, I electronically served the following document[s]:

   a. **JOINT CASE MANAGEMENT CONFERENCE STATEMENT**

5. I electronically served the aforementioned document[s] by emailing them to the following individual[s]:

Brendan Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
E-mail Address: bnn.cdl@gmail.com
Pro Per

I declare under penalty of perjury under the laws of the State of California and the United States of America that the foregoing is true and correct, and that this declaration was executed on September 8, 2026.

G. Guardado	*/s/ G. Guardado*
Declarant	Signature

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